



**Order under Section 69 / 89
Residential Tenancies Act, 2006**

Citation: MetCap Living Management Inc v Chambers, 2025 ONLTB 94406

Date: 2025-12-10

File Number: LTB-L-064995-25

In the matter of: 811, 1340 DANFORTH RD
SCARBOROUGH ON M1J1G2

Between: MetCap Living Management Inc Landlord

And

Nicole Chambers Tenant

MetCap Living Management Inc (the 'Landlord') applied for an order to terminate the tenancy and evict Nicole Chambers (the 'Tenant') because:

- the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has wilfully or negligently caused damage to the premises

MetCap Living Management Inc (the 'Landlord') also applied for an order requiring Nicole Chambers (the 'Tenant') to pay the Landlord's reasonable out-of-pocket costs the Landlord has incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex.

This application was heard by videoconference on November 19, 2025.

The Landlord's Legal Representative, Krizia Hernandez, the Tenant's support person, Nathanya Thompson and the Tenant attended the hearing.

Determinations:

1. As explained below, the Landlord has proven on a balance of probabilities the claim for compensation in the application. Therefore, the Tenant must pay compensation to the

Landlord in the amount of \$909.20 on or before December 21, 2025 which includes the application fee.

2. The Tenant was in possession of the rental unit on the date the application was filed.
3. On July 4, 2025, the Landlord gave the Tenant an N5 notice of termination deemed served on July 9, 2025. The notice of termination contains the following allegations: "On June 17, **File Number:** LTB-L-064995-25

2025, the toilet was fully clogged with Q-tips and tissue by the Tenant. The toilet was replaced by a plumber. The tenant is responsible for the repair of undue damage to the rental unit caused by their wilful or negligent conduct. See attached supporting documents." The Landlord included the invoice for the repair work and a copy of a notice of a charge to the Tenant.

Compensation for Damage

4. The Landlord's Legal Representative called Rob Paprocki as a witness to describe what happened.
5. Rob Paprocki stated that he was covering for the Resident Manager for this building and he is aware of the clogged toilet that occurred on June 17, 2025. He stated that he attended at Unit 811, 1340 Danforth Road in Scarborough and was advised by the plumber that this toilet was completely clogged by tissue and q-tips. He produced the plumber's invoice dated June 17, 2025 which stated "shut the water off and then used the vacuum to suck out all the water out of the toilet put together the new toilet and installed it. Brought the old toilet down and broke the toilet trap and found q-tips and tissues inside the toilet trap."
6. Mr. Proprocki provided the Work Order #20915 and the amount of the invoice was \$723.20. He explained that this amount had been added to the Tenant's ledger with the Landlord, MetCap Living Management Inc.
7. The Tenant's support person, Nathanya Thompson requested that she be allowed to speak on her mother's behalf. Ms. Thompson stated that her mother had contacted the portal where she requested that someone attend her unit to look at this toilet as it was clogged. She stated that her mother requested a maintenance order on the portal on June 8, 2025 but no maintenance person attended.
8. Ms. Thomson felt that her request should have been responded to more quickly and perhaps then, the toilet may have not needed to be replaced. Ms. Thomson did not provide any evidence to support her statement.
9. Ms. Thomson also felt the toilet that was removed from her mother's unit did not require that it be disposed. She stated that she contacted another plumber and explained the

issue and this plumber felt that the toilet did not need to be disposed. Ms. Thomson did not provide her plumber's estimate or any documentation for an alternate plumber to support her position.

10. The Landlord's Legal Representative stated that she was simply seeking a payment order that the Tenant pay for the replacement of the toilet in the amount of \$723.20 and the application fee of \$186.00.
11. Overall, I find that the Landlord incurred reasonable costs of \$723.20 to repair the broken toilet as claimed in the application and the Landlord is entitled to the application fee of \$186.00.

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It is ordered that:

1. The Tenant shall pay the amount of \$909.20 to the Landlord by December 21, 2025. This amount represents the reasonable costs of repairing the damaged toilet and the application fee.
2. If the Tenant does not pay the Landlord the full amount owing on or before December 21, 2025, the Tenant will start to owe interest. This will be simple interest calculated from December 22, 2025 at 4.00% annually on the balance outstanding.

December 10, 2025

Date Issued

Carrie Bertrand

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

